

25PSCV01072 25PSCV01072

County: los-angeles

Division: Civil Law and Motion

Department: 6

Hearing date: 2026-08-12

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CIT%2C6%2C08%2F12%2F2026

Source SHA-256: 2c3aa5de44ad4c7f40c011e10c8a800bca497a28fbd3764d979a2d5a023c798f

Case Number: 25PSCV01072 Hearing Date: August 12, 2026 Dept: 6

CASE

NAME: Humberto

H Tapia Lopez, et al. v. General Motors, LLC

Defendant

General Motors LLC's Motion to Dismiss for Discovery Violations

TENTATIVE

RULING

The Court Defendant General Motors LLC's Motion to Dismiss for Discovery Violations The Court hereby DISMISSES this action without prejudice and ORDERS Plaintiff's counsel to pay for Defendant's costs per Code of Civil Procedure section 871.26, subdivision (j)(3), with the Court retaining jurisdiction to fix the amount of such costs upon Defendant's filing of a memorandum of costs.

Defendant General Motors LLC is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a lemon law action. On March 25, 2025, plaintiffs Humberto H Tapia Lopez and Alicia Guadalupe Garcia Rodriguez (collectively, Plaintiffs) filed this action against defendant General Motors, LLC (Defendant) and Does 1 through 10, alleging causes of action for violation of subdivision (d) of Civil Code section 1793.2, violation of subdivision (b) of Civil Code section 1793.2,

violation of subdivision (a)(3) of Civil Code section 1793.2, breach of the implied warranty of merchantability, and fraudulent inducement-concealment. On July 16, 2025, Plaintiffs filed the operative First Amended Complaint (FAC) against the same Defendant and alleging the same causes of action.

On January 8, 2026, the Court granted Defendant's motion for compliance pursuant to Code of Civil Procedure section 871.26 compelling Plaintiffs deposition within 30 days of the Court's order. (Minute Order 1/8/26.) On July 9, 2026, Defendant moved to dismiss for discovery violations. Plaintiff did not oppose the Motion.

LEGAL STANDARD

(j)
Unless the party failing to comply with this section shows good cause, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court shall impose sanctions as follows:

...

(3)
For a plaintiff's repeated noncompliance with subdivision (b), (c), or (d), a court shall order the case dismissed without prejudice and the plaintiff's attorney to be responsible for costs awarded to the manufacturer.

(Code Civ.
Proc., § 871.26, subd. (j)(3).)

DISCUSSION

Defendant moves to dismiss the entire action under Code of Civil Procedure section 871.26, subdivision (j)(3), based on Plaintiffs' assertedly repeated noncompliance with the expedited discovery requirements applicable to Lemon Law actions. Defendant sets forth the prior history of Plaintiffs failing to comply with their deposition obligations under Code of Civil Procedure section 871.26, which eventually led to the Court granting General Motors' motion to compel on January 8, 2026, and ordering Plaintiffs to sit for deposition within 30 days. Defendant indicates that Plaintiffs still have not provided a deposition date or appeared for deposition. Defendant therefore

requests dismissal of the Complaint without prejudice, an order that Plaintiff's counsel be responsible for Defendant's costs, and that the Court retain jurisdiction to determine the amount of such costs upon the filing of a memorandum of costs.

The Court finds Defendant's Motion persuasive. The evidence shows Plaintiffs failed on multiple occasions to comply with their deposition obligations under Code of Civil Procedure section 871.26, even after the Court granted Defendant's prior motion to compel Plaintiffs' depositions. (Stark Decl., ¶¶ 2-7, Exs. A-B; Order Re: Tentative Ruling (1/8/26); Code Civ. Proc., § 871.26, subd. (c).) The Court further construes Plaintiffs' lack of opposition as a concession that Defendant's arguments are meritorious. (D.I. Chadbourne, Inc. v. Superior Court (1964) 60 Cal.2d 723, 728, fn. 4 [where nonmoving party fails to oppose a ground for a motion, "it is assumed that [nonmoving party] concedes" that ground].) Since Plaintiffs did not oppose the motion, they have not shown good cause for their failure to comply with their statutory obligations or the Court's order compelling their depositions.

Based on the foregoing, the Court GRANTS the Motion. The Court hereby DISMISSES this action without prejudice and ORDERS Plaintiff's counsel to pay for Defendant's costs per Code of Civil Procedure section 871.26, subdivision (j)(3), with the Court retaining jurisdiction to fix the amount of such costs upon Defendant's filing of a memorandum of costs.

CONCLUSION

The Court Defendant General Motors LLC's Motion to Dismiss for Discovery Violations The Court hereby DISMISSES this action without prejudice and ORDERS Plaintiff's counsel to pay for Defendant's costs per Code of Civil Procedure section 871.26, subdivision (j)(3), with the Court retaining jurisdiction to fix the amount of such costs upon Defendant's filing of a memorandum of costs.

Defendant General Motors LLC is ordered to give notice of the Court's ruling within five calendar days of this order.